
DISSENT

JOHN K. BUSH, Circuit Judge, dissenting. “[C]ourts are particularly ill equipped to deal with the[] problems” of jail administration. *Shaw v. Murphy*, 532 U.S. 223, 229 (2001) (quoting *Procunier v. Martinez*, 416 U.S. 396, 405 (1974)). And “[r]unning a [jail] is an inordinately difficult undertaking.” *Turner v. Safley*, 482 U.S. 78, 84–85 (1987). With that reality in mind, I respectfully dissent. The majority invites judicial micromanagement of jailers’ daily affairs with a novel test for analyzing pretrial detainees’ Fourteenth Amendment failure-to-protect claims. Its decision will create even more confusion in our circuit and for those working in jails. It also reaches the wrong result: even under the majority’s test, I would affirm the district court’s grant of summary judgment to defendants.

I.

After Bretton Westmoreland failed to appear in court, he was apprehended and detained on May 27, 2018, in the Butler County Detention Center. There, his cell was separate from that of an inmate, Jerry St. Clair, who believed Westmoreland had “ratted” on him during a previous incarceration. R. 25-1, Westmoreland Dep., PageID 140; *see also* R. 26-3, Intake Sheet, PageID 221. On the morning of June 4, St. Clair voiced his accusation—calling Westmoreland a “rat”—while mopping floors outside Westmoreland’s cell. R. 25-1, Westmoreland Dep., PageID 142, 156. Westmoreland says that this statement “rowdied up” his cellmates—in particular, Ricky Mullikan and Adrian Baucum. *Id.* at 143. Fearing for his safety, Westmoreland called his mother that same morning and told her that he thought “something [was] going to happen.” *Id.* at 143–44. He called her again later that day, and she informed him that she had spoken with Tara McMillin, a coordinator at the jail, who was going to talk to Rocky Tyree, one of the jailers, who would handle the issue. *Id.* at 145. Westmoreland says that he then asked a guard, Deputy Jesse Kidd, to move him from his cell. *Id.* at 144. According to Kidd, Westmoreland told him that “he couldn’t stand to be in the cell with the other inmates and that they were getting on his nerves.” R. 26-6, Kidd Incident Report, PageID 233. Kidd denied Westmoreland’s request to be

moved. The deputy testified that he told Westmoreland that “we could not just move him because he didn’t like it.” *Id.*

Tyree admits that he received a note from McMillin about Westmoreland’s mother’s concerns. R. 25-2, Tyree Dep., PageID 162; *see also* R. 26-4, McMillin Incident Report, PageID 224. Yet he claims that only fifteen minutes before receiving that note, he had already spoken to Westmoreland and Westmoreland denied that he wanted to be moved from his cell. R. 25-2, Tyree Dep., PageID 162. Westmoreland, however, claims that this conversation never took place, R. 29, Resp. to Mot. for Summ. J., PageID 246, so we assume it did not for the purposes of his summary judgment motion. *See Jackson v. City of Cleveland*, 925 F.3d 793, 806 (6th Cir. 2019) (citations omitted).¹

Westmoreland also says that on the evening of June 4, his cellmates began to act more aggressively toward him. R. 25-1, Westmoreland Dep., PageID 146, 156. While they were watching television, Mullikan attacked Westmoreland from behind and broke his jaw. *Id.* at 147–48. How jailers were supposed to have known about an impending assault is unclear. The note from Westmoreland’s mother only spoke of general concern because of St. Clair’s calling Westmoreland a “rat,” not an imminent attack by his cellmates. R. 26-4, McMillin Incident Report, PageID 224 (“She said Inmate Jerry St. Clair was now on the floor and was causing problems.”). Even Westmoreland admits that he did not know he was in danger of an attack at that point. Indeed, he explained that it was “a surprise it happened then.” R. 25-1, Westmoreland Dep., PageID 158. And even after he was transported to the hospital for treatment of his injuries, the cause of those injuries was not obvious to the jailers. When Tyree asked Westmoreland what happened, Westmoreland first asserted that he had fallen in the shower. *Id.* at 148. Only later did he admit that he had been attacked by his cellmate.

Westmoreland filed a complaint against Tyree, Butler County, and two other jail officials—whom he later voluntarily dismissed—under 42 U.S.C. § 1983 for failure to protect him in violation of the Eighth and Fourteenth Amendments. He also brought Kentucky state-law claims for negligence and gross negligence. The district court granted summary judgment to

¹Westmoreland does concede, however, that Tyree was not responsible for or involved in determining Westmoreland’s particular cell or where St. Clair was permitted to mop floors. Oral Arg. at 7:12–7:45.

Tyree and Butler County, the remaining defendants, holding that because Westmoreland had failed to show that Tyree knew of a substantial risk of harm, he had not violated the Constitution. It also declined to exercise its discretionary pendent jurisdiction over his state-law claims. Westmoreland timely appealed.

II.

Despite the district court’s thoughtful application of existing precedent to correctly reject Westmoreland’s claims, the majority now vacates that decision with a novel multi-factor test that it imports from the Ninth Circuit. Maj. Op. at 9–11 (citing *Castro v. County of L.A.*, 833 F.3d 1060, 1071 (9th Cir. 2016) (en banc), cert. denied, 137 S. Ct. 831 (2017)). Its admittedly “new standard” diverges from settled precedent as established by both the Supreme Court and this circuit. To illustrate that divergence, I begin by discussing the first principles underlying Westmoreland’s claim.

Because Westmoreland is a pretrial detainee, rather than a convicted prisoner, his claim arises under the Fourteenth Amendment rather than the Eighth. Yet a review of the relevant precedents concerning the Eighth Amendment—which have long informed the principles governing detainee claims under the Fourteenth—provides crucial context.

The Eighth Amendment’s prohibition against the infliction of “cruel and unusual punishments,” U.S. Const. amend. VIII, has been read to require the government to provide reasonable safety to those in its care. See *DeShaney v. Winnebago Cnty. Dep’t of Soc. Servs.*, 489 U.S. 189, 200 (1989) (citing *Estelle v. Gamble*, 429 U.S. 97, 103–04 (1976)). In *Farmer v. Brennan*, the Supreme Court articulated a two-pronged test for determining when a prison official violates the Eighth Amendment by failing to protect an inmate. 511 U.S. 825, 834 (1994). First, the failure to prevent harm must be “sufficiently serious”; in other words, the condition must pose a “substantial risk of serious harm.” *Id.* (citations omitted). This requirement has been called the “objective” prong of the test. The second requirement, known as the “subjective” or “deliberate-indifference” prong, requires that the prison official have a “state of mind” that is “‘deliberately indifferent’ to the inmate’s health or safety.” *Id.* (cleaned up). Rejecting an invitation to adopt a solely objective test, the Supreme Court made clear that the

deliberate-indifference prong requires proof that the official “knows of and disregards an excessive risk to inmate health or safety.” *Id.* at 837. In other words, “the official must both be aware of facts from which the inference could be drawn that a substantial risk of serious harm exists, and *he must also draw the inference.*” *Id.* (emphasis added).

This two-pronged test from *Farmer*, and the duty to protect from harm, were later extended to the pretrial-detainee context. See *DeShaney*, 489 U.S. at 200 (applying the Fourteenth Amendment’s prohibition against the “depriv[ation of] any person of life, liberty, or property, without due process of law,” U.S. Const. amend. XIV, in the pretrial-detainee context (citing *Youngberg v. Romeo*, 457 U.S. 307, 315–16 (1982))); see also *Beck v. Hamblen County*, 969 F.3d 592, 600–01 (6th Cir. 2020) (“[We] have previously held that *Farmer*’s test for a prisoner’s claim under the Eighth Amendment applies ‘with equal force’ to a pretrial detainee’s substantive-due-process claim under the Fourteenth Amendment.” (quoting *Richko v. Wayne County*, 819 F.3d 907, 915 (6th Cir. 2016))). Thus, longstanding Sixth Circuit precedent barred a pretrial detainee’s recovery against a jailer unless he could show that the jailer subjectively understood the potential for harm.

Then, in *Kingsley*, the Supreme Court modified the subjective prong of the two-part test for excessive-force claims brought by pretrial detainees under the Fourteenth Amendment. *Kingsley*, 576 U.S. at 400. The *Kingsley* Court explained that the issue before it was whether, “to prove an excessive force claim [under the Fourteenth Amendment], a pretrial detainee must show that the officers were *subjectively* aware that their use of force was unreasonable, or only that the officers’ use of that force was *objectively* unreasonable.” *Id.* at 392 (emphasis added). It outlined two state-of-mind inquiries—the first inquiry is into the official’s “state of mind with respect to the bringing about of certain physical consequences in the world,” and the second inquiry is into the official’s “state of mind with respect to whether his use of force was ‘excessive.’” *Id.* at 395. The Supreme Court explained that “pretrial detainees (unlike convicted prisoners) cannot be punished at all, much less ‘maliciously and sadistically,’” so a subjective standard would be inappropriate in response to the second state-of-mind inquiry. *Id.* at 401 (citations omitted). But while it explained that the *degree* of force must be viewed objectively,

the force itself must still be the result of an “intentional and knowing act[.]” *Id.* (emphasis added).

Our circuit recently extended *Kingsley* to modify the subjective prong of the *Farmer* test in the medical-needs context. *See Brawner v. Scott County*, 14 F.4th 585, 596 (6th Cir. 2021); *see also Greene v. Crawford County*, 22 F.4th 593, 607 (6th Cir. 2022); *Britt v. Hamilton County*, No. 21-3424, 2022 WL 405847, at *3 (6th Cir. Feb. 10, 2022); *Hyman v. Lewis*, No. 21-2607, --- F.4th ---, 2022 WL 682543, at *2–3 (6th Cir. Mar. 8, 2022). In *Brawner*, the majority posited that “*Kingsley* requires modification of the subjective prong of the deliberate-indifference test for pretrial detainees.” *Brawner*, 14 F.4th at 596. It concluded that what “is required [for a pretrial detainee] to establish deliberate indifference” is that the official “acted deliberately (not accidentally), but also recklessly ‘in the face of an unjustifiably high risk of harm that is either known or so obvious that it *should be known*.’” *Id.* (emphasis added) (quoting *Farmer*, 511 U.S. at 836); *see also Greene*, 22 F.4th at 606 (“*Brawner* modified the second prong of the deliberate indifference test applied to pretrial detainees to require only recklessness[.]”).

The standard for evaluating medical-needs claims as announced in *Brawner* should now be considered binding precedent. However, I fear that *Brawner*, as applied by the majority opinion, will compound the conflict in our Fourteenth Amendment jurisprudence. The majority opinion apparently views *Brawner*, using a civil-law recklessness standard, as permitting a path to recovery that is wholly objective, i.e., not contingent on a finding that an official was subjectively aware of some asserted risk. Maj. Op. at 8–11; *cf. Brawner*, 14 F.4th at 584 (quoting *Estelle*, 429 U.S. at 836–37 (defining civil-law recklessness)).² But this interpretation is inconsistent with *Farmer* and our longstanding adoption of the *Farmer* test for pretrial detainees’ failure-to-protect claims. *See Farmer*, 511 U.S. at 837–38 (rejecting a wholly objective test); *see also Barnes v. Ahlman*, 140 S. Ct. 2620, 2622 (2020) (Sotomayor, J.,

²*Brawner*’s modification of case law has already provoked confusion within our circuit. *See Britt*, 2022 WL 405847 at *6 (“[The dissent] claims that we have ‘misapplie[d] the applicable law’ by failing to apply the *Brawner* recklessness standard . . . [b]ut from beginning to end, we have applied the recklessness test for determining the existence of deliberate indifference.”); *see also id.* at *7 (Clay, J., dissenting) (“While the majority concedes that Plaintiff’s deliberate indifference claims require us to apply an objective test, it nevertheless compares Defendants’ actions, and inactions, to prior cases where we applied a subjective test.”).

dissenting from the grant of stay) (labeling the *Farmer* test “well-established law” for pretrial detainees’ failure-to-protect claims). And as a prudential matter, even assuming *Farmer* does not control here, it is unclear to me how the majority opinion’s application of *Browner* differs from a mere negligence standard. Compare Restatement (Third) of Torts: Phys. & Emot. Harm § 3 (2010) (defining “negligence” as when a “person does not exercise reasonable care under all the circumstances” and explaining that “reasonable care” is “conduct that avoids creating an ‘unreasonable risk of harm’”), with *Browner*, 14 F.4th at 598 (applying the new test and concluding that “[the official] recklessly failed to act reasonably to mitigate the risk that the serious medical need posed to [the detainee]”), and *Britt*, 2022 WL 405847 at *3 (describing the relevant inquiry as “whether the defendants acted recklessly in response to a danger, ‘even though a reasonable official’ in their position would have known about an ‘excessive risk’” (citations omitted)). But “liability for negligently inflicted harm,” as the Supreme Court has explained, “is categorically beneath the threshold of constitutional due process.” *Kingsley*, 576 U.S. at 396 (quoting *County of Sacramento v. Lewis*, 523 U.S. 833, 849 (1998) (emphasis added)).

True, the *Browner* test may not facially look like a mere negligence standard because it requires an “excessive risk.” But this hedging makes little difference in practice. Jails are inherently risky places to be. See, e.g., Dep’t of Justice, Office of the Inspector General, M. Horowitz, Top Management and Performance Challenges Facing the Department of Justice—2021 (2021). The background risk at a jail is elevated as compared to the risk present outside of it—the risk we may think of when arguing that objective recklessness is not a negligence standard. But in a jail, where the risk is already elevated, the standard collapses into de facto negligence. Pretrial detainees in every case will now argue that jailers “should have known” some harm would materialize.

Setting aside those concerns for now, though, this case does not present immediately analogous circumstances to those in *Browner*, which involved a medical-needs claim. Here, a failure-to-protect claim is at issue. There is no compelling reason why the former must govern the latter. As Westmoreland’s counsel conceded at oral argument, a medical-needs claim “differs from [] an excessive-force and failure-to-protect claim.” Oral Arg. at 1:28–1:39.

No Supreme Court precedent—certainly not *Kingsley* itself—authorizes reimagination of our failure-to-protect analysis. And we have never applied *Kingsley* outside of the medical-needs context. So, *Browner* does not govern here.

III.

Browner does not compel us to ignore binding precedents for a type of claim—failure-to-protect—that was not at issue in *Browner*. The discussion below first explains why the majority’s new test is not mandated by Supreme Court precedent. The discussion then describes why the new test is unworkable and logically inconsistent.

A. Problems Arising from the Majority’s Application of *Kingsley* to a Failure-to-Protect Claim

The Supreme Court has not, through *Kingsley* or otherwise, overruled *Farmer* or overruled the subjective component of the deliberate-indifference test for failure-to-protect claims. See, e.g., Maj. Op. at 6–7. And in *Kingsley*, the Court made clear that its “view that an objective standard is appropriate in the context of *excessive force claims* brought by pretrial detainees pursuant to the Fourteenth Amendment” does not address the standard for other claims brought under that provision. *Kingsley*, 576 U.S. at 402 (emphasis added). In particular, the *Kingsley* Court stated that its holding was that courts must use an objective standard for determining if “the force deliberately used is . . . excessive.” *Id.* at 396 (cleaned up). And it has stated that we must distinguish excessive-force claims from other types of claims, specifically with respect to requirements for proof. See *Porter v. Nussle*, 534 U.S. 516, 523 (2002).

The Supreme Court also was clear that liability of an official under *Kingsley* is limited to only those situations involving “an intentional and knowing *act*.” *Kingsley*, 576 U.S. at 400 (emphasis added); see also *Browner v. Scott County*, 18 F.4th 551, 555 (6th Cir. 2021) (mem.) (Readler, J., dissenting from the denial of rehearing en banc) (explaining that “deliberate” is defined as “[d]one with or marked by full consciousness of the nature and effects” (citation omitted)). So, as a purely common-sense matter, it is not clear how *Kingsley*—a case involving an *action*—necessarily applies to cases involving *inaction*. See *id.* at 551–57 (Readler, J.,

dissenting from denial of rehearing en banc); *see also Brawner*, 14 F.4th at 607–08 (Readler, J., concurring in part and dissenting in part).

It is true that the *Brawner* majority did apply *Kingsley* in the medical-needs context, which could involve alleged governmental inaction. But I would not extend *Kingsley* further to apply to a failure-to-protect claim in the absence of a clear Supreme Court directive that we do so. *Agostini v. Felton*, 521 U.S. 203, 237 (1997); *Rodriguez de Quijas v. Shearson/Am. Exp., Inc.*, 490 U.S. 477, 484 (1989) (“[We must] leav[e] to this [Supreme] Court the prerogative of overruling its own decisions.”); *RLR Invs., LLC v. City of Pigeon Forge*, 4 F.4th 380, 390 (6th Cir. 2021) (“In the Sixth Circuit, a three-judge panel may not overturn a prior decision unless a Supreme Court decision ‘mandates modification’ of our precedent.” (citing *United States v. Moody*, 206 F.3d 609, 615 (6th Cir. 2000))). *Kingsley*, as applied in *Brawner*, should not be read to likewise modify the test for a failure-to-protect claim, which should still be governed by the *Farmer* test.

B. Problems Arising from the Majority’s Adoption of the Ninth Circuit’s *Castro* Test

In addition to my concerns noted above regarding the majority’s failure to apply *Farmer*, there are other problems arising from the majority’s adoption of a new, four-part test for failure-to-protect claims under the Fourteenth Amendment. Maj. Op. at 9–11. Under this test, borrowed from the Ninth Circuit in *Castro*, a plaintiff must show four elements to prevail on a failure-to-protect claim:

- (1) The defendant made an intentional decision with respect to the conditions under which the plaintiff was confined;
- (2) Those conditions put the plaintiff at substantial risk of suffering serious harm;
- (3) The defendant did not take reasonable available measures to abate that risk, even though a reasonable officer in the circumstances would have appreciated the high degree of risk involved—making the consequences of the defendant’s conduct obvious; and
- (4) By not taking such measures, the defendant caused the plaintiff’s injuries.

Maj. Op. at 9 (quoting *Castro*, 833 F.3d at 1071). The majority attempts to clarify its test by stating that it “hold[s]” that a plaintiff must show that “a defendant officer [] act[ed]

intentionally in a manner that puts the plaintiff at substantial risk of harm, without taking reasonable steps to abate that risk, and by failing to do so actually cause[d] the plaintiff's injuries." *Id.* at 10.

According to the majority, only element 3 introduces something new by reflecting *Kingsley*'s modification of the subjective component of the *Farmer* test. *See Kingsley*, 576 U.S. at 396. The majority also states that elements 1, 2, and 4 are not new but simply track the objective prong of the *Farmer* test, the component not modified by *Kingsley*. *See Maj. Op.* at 9 ("The first, second, and fourth elements of this test match the objective prong of the failure-to-protect claim." (citing *Farmer*, 511 U.S. at 834)); *but see Farmer*, 511 U.S. at 834 ("Our cases have held that a prison official violates the Eighth Amendment *only when two requirements are met.*" (emphasis added)).

In fact, only element 2 tracks the objective component of the *Farmer* test. *See Farmer*, 511 U.S. at 834 (noting that the objective component requires a pretrial detainee to "show that he is [detained] under conditions posing a substantial risk of serious harm"); *see also Montgomery v. Ferentino*, No. 20-3114, 2021 WL 3204843, *2 (6th Cir. Feb. 24, 2021) ("To establish a constitutional violation based on a failure to protect, an inmate must establish that: (1) 'the failure to protect from risk of harm is objectively 'sufficiently serious''; and (2) 'prison officials acted with 'deliberate indifference' to inmate health or safety.'" (quoting *Bishop v. Hackel*, 636 F.3d 757, 766 (6th Cir. 2011) (quoting *Famer*, 511 U.S. at 833–34))). Elements 1 and 4 are wholly new additions to the objective component of the *Farmer* test, and it is not clear what their purposes are, or how they are to be satisfied, for a claim alleging failure to act.

It does not logically follow, as the majority argues, that *Kingsley*, through *Browner*, requires us to modify the subjective *and* objective components of the *Farmer* test. *See, e.g., Britt*, 2022 WL 405847 at *6 ("That we have relied on pre-*Browner* cases for other aspects of the deliberate-indifference inquiry is hardly unusual. What would be unusual would be to assume that *Browner* overruled all of these cases, even those that dealt with other issues and even those that relied on alternative grounds when they addressed the state-of-mind inquiry."). Even if the majority were correct that *Kingsley* and *Browner* effect faithful application of those precedents for failure-to-protect claims, they would require that we keep the objective prong of the *Farmer*

standard untouched and only modify the subjective prong—not import wholesale a novel test that modifies both. See *Wright v. Spaulding*, 939 F.3d 695, 700 (6th Cir. 2019) (“[This circuit] follows the rule that the holding of a published panel opinion binds all later panels unless overruled or abrogated en banc or by the Supreme Court.”).

Indeed, our circuit has never understood *Kingsley* to have modified the *objective* component of the test applied to pretrial detainees’ claims. See *Greene*, 22 F.4th at 607 (“[A] plaintiff must ‘present evidence from which a reasonable jury could find that (1) that [the detainee] had an objectively serious medical need; and (2) that [the defendant’s] action (or lack of action) was intentional (not accidental) and she either (a) acted intentionally to ignore [the detainee’s] serious medical need, or (b) recklessly failed to act reasonably to mitigate the risk the serious medical need posed to’ the detainee.” (citing *Brawner*, 14 F.4th at 597)); see also *Britt*, 2022 WL 405847 at *3.

Furthermore, the majority’s new test is not workable as applied to failure-to-protect claims.³ It purports to implement *Kingsley*, but that case involved alleged *action*—that is, excessive force—not alleged *inaction*, which underlies a failure-to-protect claim. See *Castro*, 833 F.3d at 1068–69. When the affirmative act of excessive force is alleged, as the Supreme Court explained, it does not matter if the official intended to punish a detainee by his actions. The question is if “the force purposefully or knowingly used against him was objectively unreasonable.” *Kingsley*, 576 U.S. at 397. In other words, we can infer punitive intent based on an affirmative act’s relationship to a legitimate government objective. See *Farmer*, 511 U.S. at 837–38. But *inaction*—when an official *fails* to act—does not raise such an inference. If an official unknowingly fails to act, even if the failure is objectively unreasonable, the official does not violate the Fourteenth Amendment. *Griffith v. Franklin County*, 975 F.3d 554, 571 (6th Cir. 2020) (“Whatever *Kingsley* requires, it is more than negligence.” (quoting *Martin v. Warren County*, 799 F. App’x 329, 338 n.4 (6th Cir. 2020))); see also *Lewis*, 523 U.S. at 848

³Perhaps because of these issues, the Ninth Circuit has since limited its sweeping use of an objective standard when applied to other failure-to-protect contexts. See, e.g., *Herrera v. L.A. Unified Sch. Dist.*, 18 F.4th 1156, 1161 (9th Cir. 2021).

(“The Fourteenth Amendment is not a font of tort law to be superimposed upon whatever systems.” (cleaned up)).

C. Logical Inconsistencies and Ambiguities within the Majority’s New Test

Even if we indulged the assumption that *Kingsley* and *Browner* somehow authorize a reconfiguration of our failure-to-protect jurisprudence, the majority’s particular method of doing so contains several deficiencies. The four-part test contains logical inconsistencies and ambiguities. And, not content with these issues, the majority compounds confusion by providing its own gloss on what this four-part test entails. I will address the majority’s restatement of its four-part test first.

The majority says that it “hold[s]” that a plaintiff must show that “a defendant officer [] act[ed] intentionally in a manner that puts the plaintiff at substantial risk of harm, without taking reasonable steps to abate that risk, and by failing to do so actually cause[d] the plaintiff’s injuries.” Maj. Op. at 10. This sentence could be read two ways. It could be that the majority’s clarification is actually the test the majority wants to adopt. If so, the majority erroneously believes that by using the words “we hold” it transforms its dicta into a holding. See *Freed v. Thomas*, 976 F.3d 729, 738 (6th Cir. 2020) (“[D]ictum is not converted into holding by forceful utterance or by preceding with the words ‘We hold that’” (quoting Pierre N. Level, *Judging Under the Constitution: Dicta about Dicta*, 81 N.Y.U. L. Rev. 1249, 1257 (2006))). A “holding” is defined as “[a] court’s determination of a matter of law pivotal to its decision.” *Black’s Law Dictionary* 849 (10th ed. 2014). The holding in the majority’s opinion would be the test that it applies to reach its decision to vacate the district court’s decision—the four-element test it adopted from *Castro*. See Maj. Op. at 10–11. The second way that the majority’s sentence could be read is that it is a clarification of certain elements of its four-part test. But its gloss on elements 1 and 4 of the four-part test creates even more problems, as explained below.

Element 1 of the four-part test requires that “[t]he defendant made an *intentional* decision with respect to the *conditions* under which the plaintiff was confined.” Maj. Op. at 9 (emphasis added); see also *id.* at 10. But it is unclear what the majority means by “intentional.” On one hand, “intentional” could mean merely that the official’s actions or inactions were not accidental.

Browner, 14 F.4th at 597. But then it is unclear how this element is not superfluous given element 3. And accidental actions already did not meet the level of a constitutional violation pre-*Kingsley*. On the other hand, element 1 could exist to try to cabin liability to those actions or inactions that intentionally created the risky conditions under which the plaintiff was confined. This interpretation would require an analysis into the official's state of mind to determine if the official subjectively knew (to *intentionally* make a decision) of the risky conditions. But that, of course, would defeat the majority's nominal goal of permitting liability even when there is merely some risk of which an official "would have" known. See *Castro*, 833 F.3d at 1087 (Ikuta, J., dissenting) ("The majority apparently reinstates the deliberate indifference standard because it cannot explain how an official's failure to act could otherwise constitute an intentional decision. In other words, the majority has simply dressed up the *Farmer* test in *Kingsley* language for no apparent reason; it conflates the two standards only to end up where we started."). Elements 1 and 3's apparent conflict will no doubt engender confusion in any practical application.

In addition, it is not clear which "conditions" element 1 refers to. Is it that the jailer must have placed the detainee in that general condition, like a cell, or a more specialized inquiry—that the jailer placed the detainee in that *particular* cell or with that *particular* person or condition? But see *Farmer*, 511 U.S. at 843. This element also ignores the realities of jail management and operations. It is often not the case that the official that assigns a cell to a detainee is also the same individual responsible for the monitoring of that cell, the transferring of detainees to different cells, hearing detainees' grievances about their cell conditions, or other decisions that arise that affect a detainee's confinement conditions. See, e.g., *Richko*, 819 F.3d at 917–21.

It cannot be the case that element 1 requires each inmate to receive constant attention and thus the micro-management of jails. See *Florence v. Bd. of Chosen Freeholders of Cnty. of Burlington*, 566 U.S. 318, 326 (2012) ("[A] regulation impinging on an inmate's constitutional rights must be upheld 'if it is reasonably related to legitimate penological interests.'" (quoting *Turner*, 482 U.S. at 89)); see also R. 25-4, McMillin Dep., PageID 178 (testifying that the floor deputies do checks in the Butler County Detention Center "at least every hour, and it could have been more frequent"); see generally R. 26-5, Inmate Check Sheet. Not only would this be an

inappropriate intrusion into jails, but it would also be impractical. *See Florence*, 566 U.S. at 326 (“[S]afety and order at these institutions requires the expertise of correctional officials, who must have substantial discretion to devise reasonable solutions to the problems they face.”). After all, jails admit over eight million inmates a year. *See, e.g.*, Dep’t of Justice, Bureau of Justice Statistics, T. Minton & Z. Zeng, *Jail Inmates in 2020—Statistical Tables* (2021).

As noted, the majority attempts to “clarify” element 1 by stating that what is required for a constitutional violation is that “a defendant officer [] act[ed] intentionally in a manner that puts the plaintiff at substantial risk of harm.” Maj. Op. at 10. This clarification suffers from the same ambiguity as element 1. This restatement could be read to require merely more than accidental actions or, by contrast, could be read to necessitate a full subjective analysis. *See supra* pp. 23–24. And, regardless, this restatement is in conflict with element 1. Instead of requiring an intentional decision with respect to the pretrial detainee’s conditions, this restatement requires an intentional *manner* that puts the detainee at risk. As the majority does not apply this restatement to the facts in reaching its decision, it does not further explain what this means.

Element 3 of the majority’s four-part test is also logically inconsistent. Similar to the *Browner* test, element 3 requires that “[t]he defendant did not take reasonable available measures to abate that risk, even though a reasonable officer in the circumstances would have appreciated the high degree of risk involved—making the consequences of the defendant’s conduct obvious.” Maj. Op. at 9; *see also id.* at 11. Yet as explained above, this element is not consistent with Supreme Court precedent and the precedent of our circuit. *See supra* pp. 19–20. And, like the *Browner* majority, today’s majority fails to explain how it has not simply instituted a de facto negligence standard under the color of “civil recklessness.” *See supra* pp. 17–18.

Last, element 4 is a confusing addition. It facially omits a proximate causation requirement. *See* Maj. Op. at 9 (“By not taking such measures, the defendant caused the plaintiff’s injuries.”); *see also id.* at 11; *Burrage v. United States*, 571 U.S. 204, 212 (2014) (“Where there is no textual or contextual indication to the contrary, courts regularly read phrases like ‘results from’ to require but-for causality.”). But our precedent for § 1983 claims requires *proximate* causation—not merely cause-in-fact. *See Marvaso v. Sanchez*, 971 F.3d 599, 606–07 (6th Cir. 2020) (stating that a plaintiff must establish proximate causation, which is a question of

foreseeability). So, unless the majority's reference to causation is actually a reference to *proximate* causation, it is unclear how the majority's test is consistent with basic principles of § 1983 jurisprudence.⁴

But even if the majority means proximate causation, the true scope of its test is still far from clear. The majority may mean that only a single official may be held liable for a failure-to-protect incident, since only that official's omission was *the* singular, proximate cause of the injury. That interpretation would make some sense, given that the *Castro* test was itself based on a *Kingsley*-inspired excessive-force instruction. *Cf. Castro*, 833 F.3d at 1060; *Kingsley*, 576 U.S. at 393–94. And in the context of some of our excessive-force and negligence analyses, we treat the official who inflicted the force as *the* proximate cause of the harm, even if some other official's omission was a cause-in-fact. *See, e.g., Smith v. County of Lenawee*, 600 F.3d 686, 692 (6th Cir. 2010). By contrast, however, the majority may be silently codifying a much more expansive notion of proximate cause, in which multiple officials may *all* be held liable for their respective inaction. *See contra Cabaniss v. City of Riverside*, 231 F. App'x 407, 413 (6th Cir. 2007) (“Only Carlton may be liable for excessive force because he was the officer to administer the pepper spray and was assisted by no one else.”). If the latter interpretation is true, it would underscore not only the sweeping nature of today's decision, but also its inconsistency with circuit precedent. Nothing about *Browner*, and certainly nothing about *Kingsley*, authorizes modification of the usual causation standards to permit that scores of bystanding officials be held liable for their supposed omissions. And neither *Kingsley* nor *Browner* purported to change our analyses with respect to the objective component of our tests.

Ducking the question of what the causation standard is under this four-part test, the majority then expands element 4, requiring that the defendant officer's failure “to do so *actually cause[d]* the plaintiff's injuries.” Maj. Op. at 10. According to Black's Law Dictionary, “actual cause” is “but-for cause” or “cause-in-fact.” *Black's Law Dictionary* 43, 265 (10th ed. 2014). If this reading of the majority's standard is accurate, it is inconsistent with our long-standing

⁴This is true even for medical-needs claims under the Fourteenth Amendment, where the pretrial detainee must show that the official was the proximate cause of the “substantial risk of harm,” even if not the proximate cause of the ultimate injury or death. *See Blackmore v. Kalamazoo County*, 390 F.3d 890, 899–900 (6th Cir. 2004); *see also Est. of Owensby v. City of Cincinnati*, 414 F.3d 596, 604 (6th Cir. 2005).

§ 1983 jurisprudence. *See Marvaso*, 971 F.3d at 606–07. Whatever the standard is, it is highly unclear, and the majority does not attempt to explain what this standard is or how it would be applied. Maj. Op. at 11.

Notwithstanding these concerns, the majority claims that Westmoreland has established each of the four elements. *Id.* at 10–11. I respectfully disagree. Even accepting the validity of the new test, Westmoreland has not satisfied many of its requirements, as explained below.

IV.

Under 42 U.S.C. § 1983, Westmoreland must show that (1) Tyree violated his constitutional right and (2) that the right was “clearly established at the time” of the violation. *District of Columbia v. Wesby*, 138 S. Ct. 577, 589 (2018) (quoting *Reichle v. Howards*, 566 U.S. 658, 664 (2012)). Under the majority’s new test, Westmoreland would need to prove each of the four elements of that test in order to show that Tyree violated his “clearly established” constitutional right. Maj. Op. at 9–11. Yet his claim fails to satisfy at least elements 1, 3, and 4.⁵

A. Westmoreland Shows No Evidence that Tyree Intentionally Failed to Move him from his Cell

Element 1 of the majority’s test concerns whether Tyree had made an “intentional decision with respect to the conditions under which [Westmoreland] was confined.” Maj. Op. at 10. It is unclear what the majority means by “intentional.” Does this element require that Tyree had to intentionally, and not accidentally, fail to move Westmoreland? *See id.* (“[Tyree] determined Westmoreland did not need to be moved.”). Or does this element require more specific decisions—that Tyree put Westmoreland in that particular cell or placed him in the cell with Mullikan? If the latter, there are no allegations that Tyree placed Westmoreland in that particular cell or specifically with Mullikan. *See, e.g.,* Appellant’s Br. at 8. If the former, the evidence still does not establish that Tyree intentionally failed to move Westmoreland from his

⁵I am inclined to agree with my colleagues that Westmoreland likely has proof to satisfy element 2—the condition “put [Westmoreland] at a substantial risk of suffering serious harm”—as being identified as a “snitch” would put him at substantial risk of assault. Maj. Op. at 10 (citing *Comstock v. McCrary*, 273 F.3d 693, 699 n.2 (6th Cir. 2001)).

cell. Accepting Westmoreland's version of events as true, Westmoreland did not tell his mother he wanted to be moved from his cell, nor did he tell Tyree. Westmoreland presents no evidence showing that Tyree made an intentional decision to not move him from his cell. Whatever element 1 requires, Westmoreland lacks proof to satisfy it.⁶

B. Westmoreland Shows No Evidence that a Reasonable Official in the Same Circumstances would have Appreciated the High Level of Risk Involved—Making the Consequences of Failing to Act Obvious

Westmoreland claims that Tyree fell short of his duty to protect him at three different times. First, when Tyree was informed that Westmoreland's mother called to express concern about her son's safety, he never followed up with Westmoreland. Appellant's Br. at 11–12. Next, when Westmoreland told Deputy Kidd that he feared his cellmates would “do something” to him, Tyree did not move him from his cell. *Id.* at 12. And finally, assuming that Tyree did talk to Westmoreland, he should have had that conversation out of earshot of Westmoreland's cellmates. *Id.* at 10–11, 18–19. Westmoreland concludes that Tyree knew of the risk leaving him in his cell posed and still did not move him. *Id.* at 17–18.

However, Westmoreland presents no evidence that he ever told Tyree—assuming he spoke to him—or his mother that he needed to be moved because he feared he was in danger from his cellmates. He proffers no evidence that Tyree knew that Westmoreland told Kidd he was concerned about his cellmates. Last, even assuming that Tyree did not speak to Westmoreland, St. Clair was not a cellmate of Westmoreland's, so Tyree was not objectively unreasonable in leaving Tyree in his cell—a cell that did not house St. Clair.

Westmoreland himself admits as much. When asked about the attack, Westmoreland testified that he was “surprise[d]” it had happened when it did and that Mullikan had not threatened him before the attack. R. 25-1, Westmoreland Dep., PageID 157–58. He also stated that he never asked to be transferred to another cell, except in his conversation with Deputy

⁶The majority does not apply its restatement of element 1—“a defendant officer must act intentionally in a manner that puts the plaintiff at a substantial risk of harm”—to the facts in this case. Maj. Op. at 10. But even if it had, Westmoreland has failed to present evidence showing that Tyree intentionally acted in a manner that put him at a substantial risk of harm.

Kidd, which Tyree testified he was not aware of prior to the incident. *Id.* at 156; R. 25-2, Tyree Dep., PageID 164–65.

Attempting to circumvent these issues, Westmoreland tries to link together a chain of events—that he would have told Tyree he feared harm from his cellmates if Tyree had pulled him out to speak to him and that Tyree still would have left him in this cell. But all Westmoreland can show is that his mother was concerned generally about his wellbeing, which was passed on to Tyree, and that his cellmates were getting on his nerves. *See, e.g.*, R. 31, Memo. Op. & Order, PageID 292 (“Westmoreland’s case at best is that Tyree knew Westmoreland’s mother was concerned generally about her son’s wellbeing because St. Clair told Westmoreland’s cellmates he was a rat.”); *see also* R. 25-3, Fugate Dep., PageID 169 (“[Westmoreland’s mother] was concerned over Jerry St. Clair.”). Westmoreland does not offer any evidence that he identified the cellmate he was concerned about, his cellmates in particular, or any other evidence that would show that he communicated to the jail officials that he was in danger in his cell because of St. Clair’s accusation. *See Kemp v. Fulton County*, No. 21-1079, --- F.4th ---, 2022 WL 575719, at *5 (7th Cir. Feb. 25, 2022) (“The defendants also argue persuasively that Kemp did not present any evidence showing that any of them was on notice of a serious risk of harm to him. Kemp admitted that he never reported his verbal disagreement with [his cellmates] or the ensuing threats to Jail employees, and that prior to the beating, all four men had cohabited peacefully for months.”).

In short, Westmoreland asks us to require jail officials to read minds. His attack, while unarguably terrible and traumatic, and Tyree’s alleged failure to talk to him are not enough to prove that Tyree violated his constitutional rights. Whatever the majority’s element 3 requires, it must be more than negligence. *See Kingsley*, 576 U.S. at 396 (citations omitted). And Westmoreland’s proof does not meet even that threshold.

C. Westmoreland Shows No Evidence that Tyree was the But-For or Proximate Cause of his Injuries

Element 4 requires that Tyree “caused” Westmoreland’s injuries by failing to take “such measures.” Maj. Op. at 9; *see also id.* at 11. The majority explains that

Westmoreland established this element by showing he suffered physical harm *as a result* of being labeled a snitch after St. Clair identified him as a ‘rat’ in front of his cellmates; his mother, Sublett, called BCJ to ask that actions be taken to protect Westmoreland; Westmoreland was not moved away from his cellmates; and he subsequently suffered a broken jaw and lingering issues as a result of an attack by his cellmate.

Id. at 11 (emphasis added). In other words, Tyree did not move Westmoreland from his cellmates after St. Clair identified him as a snitch and Westmoreland’s jaw was broken by his cellmate. If element 4 requires proximate causation, it is clear that Westmoreland has not offered evidence to satisfy it. In any sense of the word “causation,” these events are too tenuous to meet the requirement of proximate cause. *See, e.g., CSX Transp., Inc. v. McBride*, 564 U.S. 685, 701 (2011) (“Common-law formulations [of proximate cause] include, [] the ‘immediate’ or ‘nearest’ antecedent test; the ‘efficient, producing cause’ test; the ‘substantial factor’ test; and the ‘probable,’ or ‘natural and probable,’ or ‘foreseeable’ consequence test.” (quoting Smith, *Legal Cause in Actions of Tort*, 25 Harv. L. Rev. 103, 106–21 (1911))). It is not a foreseeable reaction that leaving Westmoreland in a cell—a cell that he did not request a floor deputy to move him from until later in the day, a cell that did not house St. Clair, and a cell that Westmoreland never expressed fear about to Tyree—would cause Westmoreland to be attacked. *See Marvaso*, 971 F.3d at 607. It does not logically follow that Westmoreland’s attack was a foreseeable event when Westmoreland himself was “surprised” on the timing of the attack.⁷ Westmoreland does not present evidence to support a finding of element 4.⁸

V.

Even assuming Westmoreland could meet each of the majority’s four elements to show that Tyree violated his constitutional right, he would still need to show that such a right was

⁷Compare this to *Castro*, where the Ninth Circuit explained that there was sufficient evidence to support element 4. *Castro*, 833 F.3d at 1073 (“[The official] failed to respond to [the detainee]’s banging on the window in the door of the cell. Jail video of the hallway showed [the detainee] pounding on his cell door for a full minute, while [the official] remained unresponsive, seated at a desk nearby. [The official] failed to respond fast enough to [an arrestee]’s inappropriate touching of [the detainee].”); *contra Kemp*, 2022 WL 575719 at *6 (“Without any evidence that . . . [the official]’s decision not to wear a hearing aid led to [the detainee]’s injuries, a jury could not conclude that [the official]’s actions were objectively unreasonable.”).

⁸The majority does not apply its creation of an “actual causation” standard to the facts in the case here. Maj. Op. at 10–11.

“clearly established at the time” of the alleged violation. See *Wesby*, 138 S. Ct. at 589 (citation omitted). “Clearly established” means that the law at the time was “sufficiently clear”; put simply, that the “existing law . . . placed the constitutionality of the officer’s conduct beyond debate.” *Id.* (quoting *Ashcroft v. al-Kidd*, 563 U.S. 731, 735 (2011) (cleaned up)). In other words, the rule must be “settled law” and “precedent must be clear enough that every reasonable official would interpret it to establish the particular rule the plaintiff seeks to apply.” *Id.* at 590 (citations omitted). “It is not enough that the rule is suggested by then-existing precedent.” *Id.*

As my colleagues concede, the standard under which we analyze pretrial detainees’ failure-to-protect claims under the Fourteenth Amendment is anything but clear. See Maj. Op. at 7–9. The federal appellate circuits are split on the applicability of *Kingsley*. Our own circuit has never “applied the objective standard to a failure-to-protect claim against an individual officer[.]” *Id.* at 9. And, as the district court accurately explained, we had “yet to alter the standard for failure to protect claims and [] continued to apply the deliberate indifference standard.” R. 31, Mem. Op. & Order, PageID 287 n.2. Westmoreland cannot show that his right was clearly established at the time of Tyree’s alleged inactions. “So long as the alleged violation has not been clearly established, the officers receive qualified immunity and the suit can be dismissed.” *Baxter v. Bracey*, 751 F. App’x 869, 871 (6th Cir. 2018), *cert. denied*, 140 S. Ct. 1862 (2020).

Indeed, it is definitionally impossible to deny qualified immunity to Tyree when adopting a new test on appeal. See *Rivas-Villegas v. Cortesluna*, 142 S. Ct. 4, 8 (2021) (per curiam) (“Neither [appellee] nor the Court of Appeals identified any Supreme Court case that addresses facts like the ones at issue here. Instead, the Court of Appeals relied solely on its precedent in *LaLonde*. Even assuming that Circuit precedent can clearly establish law for purposes of § 1983, *LaLonde* is materially distinguishable and thus does not govern the facts of this case.”); *City of Tahlequah v. Bond*, 142 S. Ct. 9, 12 (2021) (per curiam) (“Neither the panel majority nor the respondent have identified a single precedent finding a Fourth Amendment violation under similar circumstances. The officers were thus entitled to qualified immunity.”). The Supreme Court has reminded us time-and-time again that we ignore this requirement at our own peril. See, e.g., *Plumhoff v. Rickard*, 572 U.S. 765, 778–79 (2014). It is time we heed its warning.

VI.

As for Butler County, Westmoreland has waived his § 1983 claim against it. Appellant’s Br. at 7 n.1 (“Plaintiff no longer appeals the District Court’s dismissal of his 42 U.S.C. § 1983 claims against Defendant Butler County.”). “[W]aiver is the ‘intentional relinquishment or abandonment of a known right.’” *United States v. Montgomery*, 998 F.3d 693, 697 (6th Cir. 2021) (cleaned up). And “we may not review waived claims at all.” *United States v. Jackson*, 995 F.3d 476, 484 (6th Cir. 2021) (quoting *United States v. Hall*, 373 F. App’x 588, 591–92 (6th Cir. 2010) (citation omitted)). But the majority states that the district court “must” analyze “Westmoreland’s claim against BCJ” after it “analyzes the claim against Tyree[.]” Maj. Op. at 12.

The majority’s resurrection of Westmoreland’s claim against Butler County distorts our proper role as neutral adjudicators. Indeed, “courts are essentially passive instruments of government.” *United States v. Sineneng-Smith*, 140 S. Ct. 1575, 1579 (2020) (quoting *United States v. Samuels*, 808 F.2d 1298, 1301 (8th Cir. 1987) (Arnold, J. concurring in denial of reh’g en banc)). We can only decide questions presented by the parties. See *id.* (citation omitted). And Westmoreland affirmatively waived his appeal on his claim against Butler County. Westmoreland asked this Court to apply the *Kingsley*-modified test to his claim against Tyree only, a case he was aware of prior to filing his appeal, see *Patterson v. State of Alabama*, 294 U.S. 600, 606 (1935), and “our system ‘is designed around the premise that [parties represented by competent counsel] know what is best for them, and are responsible for advancing the facts and argument entitling them to relief.’” *Sineneng-Smith*, 140 S. Ct. at 1579 (quoting *Castro v. United States*, 540 U.S. 375, 386 (2003) (Scalia, J., concurring in part and concurring in judgment)); see also *Wood v. Milyard*, 566 U.S. 463, 472–73 (2012). I would affirm the district court’s judgment on Westmoreland’s claim against Butler County.⁹

⁹Even if Westmoreland had not waived his claim, he forfeited it. Butler County’s liability is not even mentioned—besides for one sentence—in either of Westmoreland’s briefs, let alone raised in developed arguments. See *Jones Bros., Inc. v. Sec’y of Lab.*, 898 F.3d 669, 677 (6th Cir. 2018) (noting that this circuit has “repeatedly held that a party forfeits any allegations that lack developed argument”). And even if we had authority to review such a claim against Butler County, it would still fail for lack of an underlying constitutional violation. See *Watkins v. City of Battle Creek*, 273 F.3d 682, 687 (6th Cir. 2001).

VII.

“[Judges] have a natural tendency to believe that their individual solutions to often intractable problems are better and more workable than those of the persons who are actually charged with and trained in the running of the particular institution under examination.” *Bell v. Wolfish*, 441 U.S. 520, 562 (1979). But we must confine ourselves to finding constitutional violations only after applying our longstanding analyses in this area to the facts before us and leave the management of jails to those better capable. I believe the majority applied the wrong test to reach the wrong result. For the foregoing reasons, I respectfully dissent.